HIGH COURT OF JUDICATURE AT BOMBAY

APPELLATE JURISDICTION · DIVISION BENCH (2 JUDGES)

Writ Petition (Civil) No. 956 of 2020 **CNR: BHC010009562020**

Date: 21 September, 2020 *Citation: 2020:BHC:412*

CORAM: Hon'ble Nitin Jamdar & Milind Jadhav, JJ.

Petitioner: Firoz Iqbal Khan

- VERSUS -

Respondent: Union of India & Sudarshan News TV

DOMAIN: MEDIA LAW & HATE SPEECH REGULATION **STATUS: Good Law (Binding Media Law Precedent)**

JUDICIAL RATIO DECIDENDI & OPERATIVE HOLDING:

Freedom of speech under Article 19(1)(a) does not include a license to incite hatred or denigrate any community. When broadcasts show prima facie violation of the Programme Code, courts have the power to interdict them.

STATUTES APPLIED: Section 19 Cable TV Act, Article 19(1)(a), Article 19(2), Article 21

DISPOSITION: TELECAST RESTRAINED PENDING PROGRAMME CODE INQUEST

EXECUTIVE RATIO SUMMARY:

Division bench restrained the telecast of episodes targeting minority civil services aspirants, affirming that hate speech vilifying an entire community cannot masquerade as freedom of press.

LEXGUARD CRYPTOGRAPHIC VERIFICATION SEAL · SECTION 65B ADMISSIBLE

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